

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Heidi Guzman	Team: Squad #16	CCRB Case #: 202200687	☐ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Wednesday, 02/02/2022 8:00 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 8/2/2023	Precinct: 09
Date/Time CV Reported Thu, 02/03/2022 10:34 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Thu, 02/03/2022 10:34 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Andre Brown	10601	966482	WARRSEC
2. DT3 Wesley Campbell	01964	958363	WARRSEC
3. SGT Marianna Gentile	00198	938547	M WARRANT SQD

Officer(s)	Allegation	Investigator Recommendation
A . PO Andre Brown	Abuse: Police Officer Andre Brown entered § 87(2)(b) in Manhattan.	
B . DT3 Wesley Campbell	Abuse: Detective Wesley Campbell entered § 87(2)(b) in Manhattan.	
C . SGT Marianna Gentile	Abuse: Sergeant Marianna Gentile entered § 87(2)(b) in Manhattan.	
D . PO Andre Brown	Abuse: Police Officer Andre Brown searched § 87(2)(b) in Manhattan.	
E . DT3 Wesley Campbell	Abuse: Detective Wesley Campbell searched § 87(2)(b) in Manhattan.	

Case Summary

On February 3, 2022, § 87(2)(b) filed this complaint with the CCRB call processing system.

On February 2, 2022, at approximately 8:00 p.m., Officer Andre Brown, Detective Wesley Campbell, and Sergeant Marianna Gentile from the Manhattan Warrant Squad went to § 87(2)(b) home at § 87(2)(b) in New York, NY to look for § 87(2)(b) ex-boyfriend. § 87(2)(b) had an active arrest warrant at the time for robbery. § 87(2)(b) fifteen-year-old daughter § 87(2)(b) answered the door. PO Brown told § 87(2)(b) that she “had to let” the officers inside. PO Brown did not inform § 87(2)(b) that she had a right to refuse entry. § 87(2)(b) went to change clothes and PO Brown put his foot in the doorway. § 87(2)(b) then let the officers enter the apartment (**Allegation A: Abuse of Authority, § 87(2)(g)** **Allegation B: Abuse of Authority, § 87(2)(g)** **Allegation C: Abuse of Authority, § 87(2)(g)** PO Brown and Det. Campbell searched through the rooms in the apartment (**Allegation D: Abuse of Authority, § 87(2)(g)** **Allegation E: Abuse of Authority, § 87(2)(g)**

The investigation obtained surveillance video footage from § 87(2)(b) building (Board Review 01). The investigation did not obtain bodyworn camera footage because the officers were not equipped with them.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Andre Brown entered § 87(2)(b) in Manhattan.
Allegation (B) Abuse of Authority: Detective Wesley Campbell entered § 87(2)(b) in Manhattan.
Allegation (C) Abuse of Authority: Sergeant Marianna Gentile entered § 87(2)(b) in Manhattan.

In her statement to CCRB, § 87(2)(b) testified that she was home alone when the officers knocked on the door (Board Review 02). She answered and saw that PO Brown had a folded piece of paper in his hand. PO Brown then told her that the officers were looking for her mother’s former partner, § 87(2)(b). PO Brown further stated that she “had to let” them in. § 87(2)(b) then told the officers to give her a minute to put on clothes. She went to her room to change. As she walked away, she noticed that PO Brown put his foot in the door, preventing the door from closing. After she changed, § 87(2)(b) returned to the door and let the officers inside. She told the officers she was home alone. § 87(2)(b) further stated that § 87(2)(b) had never lived in that apartment and that neither she nor her mother was in contact with him. After the officers entered the apartment, Sgt. Gentile asked § 87(2)(b) how old she was, and § 87(2)(b) told Sgt. Gentile that she was 15. There was no conversation about her age prior to that point.

In her statement to CCRB, § 87(2)(b) testified that she was not home during the incident, but relayed what § 87(2)(b) told her later that evening (Board Review 03). § 87(2)(b) testified that § 87(2)(b) was physically abusive to her, resulting in an Order of Protection which expired last year. § 87(2)(b) further stated that § 87(2)(b) had never lived at her apartment. However, he had used her address before when interacting with police and on job applications.

§ 87(2)(b) further testified that § 87(2)(b) told her the following. After officers knocked on the door, § 87(2)(b) opened the door just wide enough to poke her head out. When the officers informed § 87(2)(b) that they were looking for § 87(2)(b), § 87(2)(b) explained that § 87(2)(b)

did not live at the apartment and that her mother had not been in contact with him for a long time. The officers asked if they could come in a search the apartment. § 87(2)(b) told them she would be right back and went to put on pants. As § 87(2)(b) walked away from the door, she did not hear the door closing and deduced that one of the officers must have stuck his foot in the doorway. § 87(2)(b) then opened the door, and the three officers came inside. § 87(2)(b) further testified that she informed PO Brown that her daughter is only 15 years old later that evening over the phone.

In his statement to CCRB, PO Brown that when § 87(2)(b) opened the door, he introduced himself and explained that he had an arrest warrant for § 87(2)(b) (Board Review 04). PO Brown showed § 87(2)(b) the warrant. He then asked § 87(2)(b) “can you guide me through the apartment?” PO Brown wanted to ensure § 87(2)(b) was not there. PO Brown did not recall if § 87(2)(b) said anything in response. PO Brown testified that he did not tell § 87(2)(b) that she could refuse entry because it was “not a requirement for him to do so.”

PO Brown did not recall § 87(2)(b) stepping away from the door, closing the door momentarily, placing his foot in the door to prevent the door from closing, whether § 87(2)(b) left the doorway to change, and whether any conversation occurred regarding § 87(2)(b) state of dress. PO Brown did not see any evidence or hear anything to suggest that other individuals were inside the apartment.

With respect to investigative steps taken prior to his visit to the location, PO Brown testified that he did not recall when he received the warrant, but that it would have been received prior to the date of the visit, February 2, 2022. Aside from the warrant, PO Brown was aware of § 87(2)(b) arrest history and addresses on file, but he did not have any specific information to indicate that § 87(2)(b) was at § 87(2)(b) at the time of the visit. PO Brown testified that he believed § 87(2)(b) was at the location because the address was listed on the arrest warrant as well as “other programs” officers use to conduct searches on individuals. During his CCRB interview, PO Brown did not specify which programs he used because his attorney objected, stating that PO Brown could not possibly recall “every single step he took.” PO Brown further testified that he did not recall when he performed the searches to verify § 87(2)(b) address.

In her statement to CCRB, Sgt. Gentile testified that after showing § 87(2)(b) the warrant and asking about § 87(2)(b) § 87(2)(b) stated that § 87(2)(b) was not there, but that the officers could come inside and look (Board Review 05). Sgt. Gentile described § 87(2)(b) demeanor as “compliant,” “civilized,” and “cooperative.”

In his testimony to CCRB, Det. Campbell testified that PO Brown asked § 87(2)(b) if they could look inside to see if § 87(2)(b) was there (Board Review 06). § 87(2)(b) complied and provided verbal consent by telling the officers they could come in. Det. Campbell described § 87(2)(b) demeanor as “calm and quiet.”

The investigation obtained surveillance footage from the exterior, lobby, and stairwells of the location (Board Review 01). The surveillance footage shows PO Brown, Det. Campbell, and Sgt. Gentile enter the building, pass through the lobby, and go up the stairs. The officers pass by mailboxes in the lobby without checking them. Det. Campbell speaks briefly with an individual outside of the frame on the first floor. The video does not have audio.

The investigation obtained a copy of the arrest warrant from the DAO, and another copy from PO Brown during his CCRB interview (Board Review 07, 08). The warrant provided by PO Brown contains identifying information about and a picture of § 87(2)(b). Both warrants are dated January 31, 2022. Neither version of the warrant contains an address.

The investigation obtained the arrest report associated with the warrant, § 87(2)(b)

§ 87(2)(b) This arrest report shows that § 87(2)(b) reported § 87(2)(b) New York, NY as his address. § 87(2)(b) [§ 86(1)(3)&(4)] [§ 87(2)(c)]

The investigation conducted a CLEAR search for the Queens address and a more targeted search for that address with the surname § 87(2)(b) (Board Review 10). This search did not yield a listing for § 87(2)(b) The investigation further conducted a search for the § 87(2)(b) address, which yielded two listings for § 87(2)(b) reported January 31, 2021 and April 19, 2021. Lastly, the investigation conducted a search for § 87(2)(b) using his first name, surname, and date of birth (Board Review 10). This search yielded three results, two of which report the § 87(2)(b) address and one of which reports an address at § 87(2)(b) § 87(2)(b)

The investigation obtained PO Brown's entries into the NYPD Enterprise Case Management System, otherwise known as DD5s, which document his investigative steps in the case (Board Review 11). The first entry is dated February 2, 2022. The first entry documents PO Brown's visit to § 87(2)(b) PO Brown noted that he spoke with § 87(2)(b) searched the apartment, and did not find § 87(2)(b) PO Brown further noted that § 87(2)(b) stated that § 87(2)(b) was her mother's ex-boyfriend and "did live at location, but does not know his current whereabouts." The second entry is dated February 20, 2022. The second entry documents PO Brown's "computer checks for the subject § 87(2)(b) including checks on the Criminal Records and Information Management System, NYPD database BADS/Omniform, and other programs. The second entry also notes that § 87(2)(b) has a domestic violence history with "1 [Domestic Incident Report] on file." PO Brown did not make any entries in his memo book regarding the location visit (Board Review 12).

An arrest warrant founded on probable cause "implicitly carries with it the limited authority to enter a dwelling in which the suspect lives where there is reason to believe the suspect is within." *Payton v. New York*, 445 U.S. 573 (1980); CPL § 120.80(4) (Board Review 13, 14). However, an officer must obtain a search warrant when entering the dwelling of a third party. CPL § 120.80(4). When an officer possesses an arrest warrant that contains an address provided several months earlier, the officer cannot assume that the defendant still resides at the address based solely on that information. *People v. Cabral*, 147 Misc. 2d 1000, 1005 (Sup. Ct. Kings County 1990) (Board Review 15). Officers must have a reasonable belief that the subject of the warrant is present at the location, especially when there is an intervening period between the initial arrest and the issuance of the warrant. *Id.* This belief should be based on a basic inquiry of relatively recent vintage, which includes database checks and verification at the location, such as checking mailboxes and speaking with neighbors. *Id.*; *People v. Fakoya*, 25 Misc. 3d 1205(A), 9 (Sup. Ct. Kings County 2009) (Board Review 16).

It is undisputed that § 87(2)(b) reported § 87(2)(b) address to the police. It is further undisputed that the arrest report associated with the arrest warrant also reported § 87(2)(b) address. However, five months passed between the arrest report and the issuance of the arrest warrant. § 87(2)(b)

§ 87(2)(b) However, his DD5 entries establish that he conducted computer checks after his location visit.

§ 87(2)(g)

However, officers do not need a warrant if they obtain voluntary consent to enter the premises. Consent to search is voluntary where “it is a true act of the will, an unequivocal product of an essentially free and unconstrained choice.” *People v. Gonzalez*, 39 N.Y.2d 122, 128 (1976) (Board Review 17). True consent is “incompatible with official coercion, actual or implicit, overt or subtle.” *Id.* Consent is not valid where the individual merely submitted to police authority. *Id.* at 128. Consent may be granted orally, in writing, or impliedly by specific conduct. The “[v]oluntariness of consent is a question of fact to be determined by the surrounding circumstances.” *People v. Odum*, 31 N.Y.3d 344 (2018) (Board Review 18). Courts may consider the individual’s prior police contact, possible history of evasiveness with police, and whether the individual has been advised of the right to refuse. *Gonzalez*, 39 N.Y.2d at 128.

“[T]here is no *per se* rule that all minors lack the authority to consent to a search.” *Abdella v. O’Toole*, 343 F. Supp. 2d 129, 135 (D. Conn. 2004) (Board Review 19). The minority of the consenting party will be merely one of many factors considered to determine the voluntariness of the consent. *Id.*

In addition, members of the NYPD are required to comply with New York City Administrative Code 14-173 regarding consent searches (Board Review 20). Officers must articulate, in “plain and simple language delivered in a non-threatening manner,” that “the person who is the subject of the search is being asked to voluntarily, knowingly, and intelligently consent to such search, and explaining that such search will not be conducted if such person refuses to provide consent to such search.”

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation (E) Abuse of Authority: Police Officer Andre Brown searched § 87(2)(b)

§ 87(2)(b) **in Manhattan.**

Allegation (F) Abuse of Authority: Detective Wesley Campbell searched § 87(2)(b)

§ 87(2)(b) **in Manhattan.**

§ 87(2)(b) testified that after the officers entered the apartment, PO Brown searched through the kitchen, including a pantry. The officers then went through the living room and closets. PO Brown then went into § 87(2)(b) bedroom, followed by Det. Campbell. Sgt. Gentile stayed in the front of the apartment. PO Brown and Det. Campbell then went through § 87(2)(b) room. After they finished searching the rooms, PO Brown and Det. Campbell asked § 87(2)(b) about “men’s clothes” and her mother’s bicycle. The officers appeared to believe that these items were clues that § 87(2)(b) was living at her home. They then asked § 87(2)(b) for her mother’s name and phone number and wrote it down. PO Brown then provided § 87(2)(b) with a business card and the officers left.

§ 87(2)(b) testified that § 87(2)(b) opened the door, and the officers came inside. PO Brown searched the apartment while Det. Campbell and Sgt. Gentile remained near the entrance of the apartment. The officers looked through the living room and touched the sofa. The officers also went inside § 87(2)(b) room and looked inside the closet. PO Brown then entered § 87(2)(b) room and went into the closet. He stated that he saw men’s clothing, to which § 87(2)(b) replied that there were no male clothes in the house and that she was home alone. PO Brown then returned to the living room and asked § 87(2)(b) about a bicycle. § 87(2)(b) explained that the bicycle was her mother’s. PO Brown provided § 87(2)(b) with a business card and the officers left.

In his statement to CCRB, PO Brown testified that the officers first entered the apartment into the living room. The kitchen was directly to the left and there was a hallway to the left of the kitchen. The officers first went through § 87(2)(b) room at the rear of the apartment. PO Brown then went into § 87(2)(b) room. PO Brown did not recall opening any doors or closets while inside the apartment. He did not have any conversation with § 87(2)(b) while looking through the rooms. § 87(2)(b) then went to the living room and spoke with Sgt. Gentile. PO Brown did not recall if he placed his hand on his firearm prior to entering § 87(2)(b) room, or recall asking if anyone was going to “jump out” at him. PO Brown did not touch anything inside the rooms. PO Brown recalled seeing men’s clothing inside § 87(2)(b) bedroom but did not recall any discussion with § 87(2)(b) about the items. PO Brown then returned to the living room. PO Brown did not recall opening the pantry or searching through it. PO Brown then provided § 87(2)(b) with a business card and left.

In her statement to CCRB, Sgt. Gentile testified that after § 87(2)(b) invited the officers inside, § 87(2)(b) walked PO Brown and Det. Campbell through the apartment. Sgt. Gentile remained in the living room area. She did not know whether PO Brown or Det. Campbell opened any closets or the pantry.

In his statement to CCRB, Det. Campbell testified that after § 87(2)(b) told the officers that they could enter, he stayed in the living room with Sgt. Gentile while PO Brown looked through the apartment with § 87(2)(b). Det. Campbell denied searching through the pantry or any closets himself. He stated that he could not testify to PO Brown’s actions during the search because he did not see them.

It is undisputed that PO Brown searched through § 87(2)(b) apartment. § 87(2)(g)

§ 87(2)(g)

Civilian and Officer CCRB Histories

This is the first CCRB complaint to which § 87(2)(b) and § 87(2)(b) have been parties (Board Review 21).

Sgt. Gentile has been a member of service for 17 years and has been a subject in one CCRB complaints and one allegation, which was unfounded. § 87(2)(g)

Det. Campbell has been a member of service for seven years and has been a subject in two CCRB complaints and four allegations, two of which were substantiated (Board Review 23):

- 201906082 involved substantiated allegations of a stop, retaliatory summons, and improper use of a body-worn camera. The Board recommended Command Discipline A and the NYPD imposed Command Discipline A.
- 202200557 involves allegations of an entry. To date, this complaint is still open. § 87(2)(g)

PO Brown has been a member of service for three years and has been a subject in four CCRB complaints and eighteen allegations, of which eight were substantiated (Board Review 24):

- 202101208 involved substantiated allegations of failure to provide a RTKA card against PO Brown. The Board recommended Formalized Training and the NYPD imposed Formalized Training.
- 202102770 involved substantiated allegations of interference with recording, threat to damage or seize property, discourtesy, offensive language other, offensive language sexual orientation, and false official statements against PO Brown. The Board recommended charges and the NYPD has not yet imposed discipline.
- 202200557 involves allegations of an entry. To date, this complaint is still open. § 87(2)(g)

Mediation, Civil, and Criminal Histories

§ 87(2)(b) declined to mediate this complaint.

As of October 19, 2022, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident (Board Review 26).

Squad: 16

Investigator:	<u>Heidi L. Guzmán, Esq.</u>	<u>Heidi L. Guzmán, Inv. Attorney</u>	<u>11/29/2022</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Tessa Yesselman</u>	<u>IM Tessa Yesselman</u>	<u>10/24/2022</u>
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date